

1	Hendrickson vs. The L3 Property Management 30-2025-01519722	<u>Motion to Be Relieved as Counsel</u> Counsel Phillip R. Geurts’ Motion to Be Relieved as Counsel for Plaintiff and Cross-Defendant Luke Mensink is DENIED without prejudice. Counsel Phillip R. Geurts remains and shall continue to act as counsel of record for Plaintiff and Cross-Defendant Luke Mensink. <u>Pending Motion</u> Counsel Phillip R. Geurts (Counsel) moves to be relieved as counsel for Plaintiff and Cross-Defendant Luke Mensink. <u>Standard to Be Relieved as Counsel</u> “The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284.) The notice of motion and motion to be relieved as counsel under Civil Procedure Code section 284 shall be directed to the client and shall be made on the Judicial Council’s Notice of Motion and Motion to Be Relieved as Counsel-Civil form (Form MC-051). (Cal. Rules of Court, rule 3.1362(a).) No memorandum is required for the motion. (See Cal. Rules of Court, rule 3.1362(b).) However, “[t]he motion to be relieved as counsel must be accompanied by a declaration on the <i>Declaration in Support of Attorney’s Motion to Be Relieved as Counsel – Civil</i> (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).” (Cal. Rules of Court, rule 3.1362(c), italics original.) In addition, “[t]he proposed order relieving counsel must be prepared on the <i>Order Granting Attorney’s Motion to Be Relieved as Counsel--Civil</i> (form MC-053) and must be lodged with the court with the
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		moving papers.” (Cal. Rules of Court, rule 3.1362(e), <i>italics original</i>.) Motions to be relieved as counsel “must be served on the client and on all other parties who have appeared in the case” and service must be made by “personal service, electronic service, or mail.” (Cal. Rules of Court, rule 3.1362(d).) If the motion is served by mail, it shall be accompanied by a declaration stating facts showing either that (1) the service address is the current residence or business address of the client or (2) the service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (Cal. Rules of Court, rule 3.1362(d)(1).) “As used in this rule, ‘current’ means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client’s last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current.” (<i>Ibid.</i>) If the motion is served by electronic mail, “it must be accompanied by a declaration stating that the electronic service address is the client’s current electronic service address.” (Cal. Rules of Court, rule 3.1362(d)(2).) The motion may be brought on various grounds, some of which include the client’s failure to pay attorney fees, (<i>People v. Prince</i> (1968) 268 Cal.App.2d 398, 406); the client’s insistence on an action that is not justified under existing law or by good faith argument, (<i>Estate of Falco v. Decker</i> (1987) 188 Cal.App.3d 1004, 1015); and a conflict of interest between counsel and the client, (<i>Aceves v. Superior Court</i> (1996) 51 Cal.App.4th 584, 592.) However, under the Rules of Professional Conduct, “a member shall not terminate a representation until the lawyer has taken reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel, and complying with paragraph (e).” (Rules Prof.
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		Conduct, rule 1.16(d); see <i>Ramirez v. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915.) Thus, the court has discretion to deny a motion to be relieved as counsel where discharging counsel would result in “undue prejudice to the client’s interests, ” (<i>Ramirez vs. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915), or “an unreasonable disruption of the orderly processes of justice,” (<i>People v. Ortiz</i> (1990) 51 Cal.3d 975, 979). The court may also deny an attorney’s request to withdraw “where such withdrawal would work an injustice or cause undue delay in the proceeding”. (<i>Mandell v. Superior Court</i> (1977) 67 Cal.App.3d 1, 4.) However, such discretion is to be exercised reasonably. (<i>Ibid.</i>) <u>Prior Proceedings</u> At the prior hearing on this motion, on July 20, 2026, the court found that Counsel had failed to comply with the requirements of California Rules of Court rule 3.1362. (See ROA #84 at p. 3.) Specially, Counsel had not stated in his declaration that he had 1) confirmed within the last 30 days that the address is the client’s current address or 2) that the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (See <i>ibid.</i>; see ROA #42, ¶ 3.) In addition, Counsel had not filed or served a proposed Order Granting Attorney’s Motion to Be Relieved as Counsel – Civil (Form MC-053). (See ROA #84 at p. 3.) The court continued the hearing on the motion and ordered that Counsel file and serve a Declaration in Support of Attorney’s Motion to Be Relieved as Counsel – Civil (Form MC-052) and a proposed Order Granting Attorney’s Motion to Be Relieved as Counsel – Civil (Form MC-053), that were completely and correctly filled out. (See <i>ibid.</i>) The court also ordered that Counsel give notice to his client of the court’s ruling. (See <i>ibid.</i>) <u>Continued Deficiencies in the Motion Papers</u> The record reveals that Counsel has not complied with the court’s July 20, 2026 order or the requirements of California Rules of Court rule 3.1362.
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2	Parker vs. Harris 30-2024-01375596	<u>Motion to Approve Settlement</u> The Joint Motion for Approval of Settlement Agreement and Dismissal of Derivative Claims is GRANTED. This entire action, including the Complaint and the Second Amended Cross-Complaint, is DISMISSED without prejudice. The court shall retain jurisdiction pursuant to Civil Procedure Code section 664.6. <u>Pending Motion</u> Plaintiff and Cross-Defendant Matthew Parker (Parker); Defendant and Cross-Complainant Nathan Harris (Harris); Nominal Defendant and Nominal Cross-Defendant Album Creative Studios, Inc. (Agency); and Cross-Defendants Album Surfboards, LLC (Album Surfboards); Kathryn Parker; Larissa Clark; S & S Intellectual Resources, LLC; Uncommon Senses, LLC; Michael Townsend; Surf & Sing, Inc. (Surf & Sing); and XO Coco, LLC jointly move for an order approving the Settlement, Forbearance, and Release Agreement. The parties also move for the court to find that the settlement is fair, reasonable, adequate, and in the best interests of Agency; to approve the dismissal of the derivative claims asserted on Agency’s behalf; to dismiss the action without prejudice; and